

25VECV01749 25VECV01749

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-07

Motion: MOTION TO AMEND JUDGMENT TO CORRECT NAME OF JUDGMENT DEBTOR

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C08%2F07%2F2026

Source SHA-256: c5ca738ea83d767601b7b2ee5fbdf174ec72c9941f974a0520c3c279c6205067

Case Number: 25VECV01749 Hearing Date: August 7, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JASON FRANCO, an

individual,

Plaintiff,

vs.

RFCO, LLC, a California limited

liabilitycompany; Alex Camacho, an individual,

andDOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV01749

[TENTATIVE]

ORDER RE:

MOTION

TO AMEND JUDGMENT TO CORRECT NAME OF JUDGMENT DEBTOR

Dept. W

8:30 a.m.

August 7, 2026

For the reasons stated below, the
Court GRANTS Plaintiff's Motion to Amend Judgment to Correct Name of Judgment
Debtor.

Background

This
is a loan repayment case. Plaintiff is Jason Franco, and Defendants are RCFO,
LLC, and its owner Alex Camacho. On November 24, 2023, Plaintiff Jason Franco
loaned RFCO \$200,000 at a 12% interest rate. Defendant Alex Camacho was the
guarantor of that loan. The loan came due on June 24, 2024. Plaintiff demanded
repayment, and Defendants have yet to pay.

On July 31, 2025, this Court granted default judgment against
Defendants RFCO, LLC and Alex Camacho. Plaintiff was awarded \$243,992.40.

Now, Plaintiff moves to amend this default judgment to correct
Defendant Alex Camacho's name to Alejandro Jose Camacho.

Discussion

Plaintiff moves to amend this judgment to correct a clerical error with
the default judgment. (Mot. to Amend, p. 4:3-9.)

Under CCP § 473(d), "[t]he court may, upon motion of the injured party,
or its own motion, correct clerical mistakes in its judgment or orders as
entered, so as to conform to the judgment or order directed, and may, on motion
of either party after notice to the other party, set aside any void judgment or
order." (CCP § 473(d).)

Here, Plaintiff states that Defendant Alex Camacho used this name to do
business, but his true and correct name is Alejandro Jose Camacho. (Janssen
Decl. ¶¶ 2-4.) In support of this argument, Plaintiffs provide a copy of the
California Secretary of State Statement of Information for Defendant RFCO, LLC.

(Janssen Decl. Ex. A.) This document has "Alejandro Jose Camacho" listed as its manager and CEO of RFCO, LLC. (Ibid.) Plaintiff also provides a copy of the original promissory note, which is signed by "Alex Camacho" in his capacity as CEO of Defendant RFCO, LLC. This evidence establishes that named Defendant Alex Camacho's true and correct name is Alejandro Jose Camacho.

Under California law, "a court may at any time amend its judgment so that the latter will properly designate the real defendants." (Mirabito v. San Francisco Dairy Co. (1935) 8 Cal.App.2d 54, 57.) Thus, this Court can amend the underlying judgment to correct Defendant's name.

This motion is unopposed. Thus, the Court GRANTS Plaintiff's Motion to Amend Judgment.

Conclusion

The Court GRANTS Plaintiff's Motion to Amend Judgment.

IT
IS SO ORDERED.

Plaintiff TO GIVE NOTICE.